U.S. Department of Transportation
Federal Highway Administration

Notice

Subject:

APPORTIONMENT OF FISCAL YEAR 2026 HIGHWAY INFRASTRUCTURE PROGRAM FUNDS FOR THE NATIONAL ELECTRIC VEHICLE INFRASTRUCTURE FORMULA PROGRAM PURSUANT TO THE INFRASTRUCTURE INVESTMENT AND JOBS ACT

Classification Code	Date	Office of Primary Interest
N4510.909	**October 1, 2025**	**HCFB-10**

1. **What is the purpose of this Notice?** Title VIII of Division J of the Infrastructure Investment and Jobs Act (IIJA), Public Law (Pub. L.) 117-58, appropriated $9,454,400,000 from the General Fund for Highway Infrastructure Programs (HIP) for Fiscal Year (FY) 2026. Of such amount, $1,000,000,000 shall be set aside for the National Electric Vehicle Infrastructure (NEVI) Formula Program. This Notice transmits the certificate of apportionment for HIP funds for the NEVI Formula Program. The apportionment is effective immediately.

   The remainder of the FY 2026 HIP funding shall be set aside for other activities that are not the subject of this Notice. This includes $5,500,000,000 set aside for a bridge replacement, rehabilitation, preservation, protection, and construction program; $250,000,000 set aside for construction of the Appalachian Development Highway System as authorized under Section 1069(y) of Pub. L. 102-240; $640,000,000 set aside for the Nationally Significant Freight and Highway Projects Program under Section 117 of Title 23, United States Code (U.S.C.); $1,847,000,000 set aside for the Bridge Investment Program under Section 124 of Title 23, U.S.C.; $30,000,000 set aside for the Reduction of Truck Emissions at Port Facilities Program under Section 11402 of Division A of the IIJA; $19,000,000 set aside for the University Transportation Centers Program under Section 5505 of Title 49, U.S.C.; $100,000,000 set aside for the Reconnecting Communities Pilot Program under Section 11509 of Division A of the IIJA; and $68,400,000 set aside for the Construction of Ferry Boats and Ferry Terminal Facilities Program under Section 147 of Title 23, U.S.C.

2. **What amount is available for distribution under this Notice?**

   a. The IIJA authorizes the Federal Highway Administration (FHWA) to retain, for operations and administration of FHWA, up to 1.5 percent of the amounts appropriated for the NEVI Formula Program.

   b. The applied administrative takedown from funds appropriated for the NEVI Formula Program is $15,000,000.

   c. In addition, FHWA shall set aside 10 percent ($100,000,000) from funds

appropriated for the NEVI Formula Program for grants to States or localities that require additional assistance to strategically deploy electric vehicle charging infrastructure.

d. Therefore, the amount of funds available for distribution to the States under this Notice is $885,000,000 after the application of an administrative takedown of $15,000,000 and a set-aside of $100,000,000.

3. **What is the availability of these funds?**

a. The funds resulting from this apportionment for the NEVI Formula Program are available for obligation until expended.

b. The funds resulting from this apportionment are available for obligation immediately, except as outlined under paragraph 5(c) below, and are not subject to any limitation on obligations.

c. The program code to be used when obligating these funds is as follows:

Program Code	Program Description	Assistance Listing Number
Y137	National Electric Vehicle Infrastructure Formula Program	20.277

4. **What is the background information for the National Electric Vehicle Infrastructure Formula Program?**

a. Subject to the minimum standards and requirements established by the Secretary of Transportation, in coordination with the Secretary of Energy and in consultation with relevant stakeholders, the funds resulting from this apportionment are eligible to be obligated for:

(i) the acquisition or installation of electric vehicle charging infrastructure;

(ii) operating assistance for costs allocable to operating and maintaining electric vehicle charging infrastructure acquired or installed under this program, for a period not to exceed 5 years;

(iii) the acquisition or installation of traffic control devices located in the right-of-way to provide directional information to electric vehicle charging infrastructure acquired, installed, or operated under this

program;

(iv) on-premises signs to provide information about electric vehicle charging infrastructure acquired, installed, or operated under this program;

(v) development phase activities relating to the acquisition or installation of electric vehicle charging infrastructure, as determined by the Secretary; or

(vi) mapping and analysis activities to evaluate, in an area in the United States designated by the eligible entity, the locations of current and future electric vehicle owners, to forecast commuting and travel patterns of electric vehicles and the quantity of electricity required to serve electric vehicle charging stations, to estimate the concentrations of electric vehicle charging stations to meet the needs of current and future electric vehicle drivers, to estimate future needs for electric vehicle charging stations to support the adoption and use of electric vehicles in shared mobility solutions, such as micro-transit and transportation network companies, and to develop an analytical model to allow a city, county, or other political subdivision of a State or a local agency to compare and evaluate different adoption and use scenarios for electric vehicles and electric vehicle charging stations.

b. After reserving the applicable administrative takedown and set-aside described in paragraph (2), the funds available for distribution to States, as defined in 23 U.S.C. 101, have been apportioned to the States in the proportion that the total base apportionment or allocation determined for the State under Section 104(c) or Section 165 of Title 23, U.S.C., for that fiscal year bears to the total base apportionments or allocations for all States under Section 104(c) and Section 165 of Title 23, U.S.C., for that fiscal year.

c. Each State was required to submit, by a deadline established by the Secretary, a plan describing how such State intends to use NEVI Formula Program funds distributed to the State.

(i) If a State failed to submit the required plan by the deadline, or if the Secretary determines that a State has not taken action to carry out its plan, the Secretary may withhold or withdraw, as applicable, NEVI Formula Program funds made available to the State for the fiscal year and award such funds on a competitive basis to local jurisdictions within the State for use on projects that meet the eligibility requirements of the NEVI Formula Program.

(ii) Prior to the Secretary making a determination that a State has not

taken actions to carry out its plan, the Secretary shall notify and consult with the State, and identify actions that can be taken to rectify concerns, and provide at least 90 days for the State to rectify concerns and take action to carry out its plan.

(iii) The Secretary shall provide notice to a State on the intent to withhold or withdraw funds not less than 60 days before withholding or withdrawing any funds, during which time the State shall have an opportunity to appeal a decision to withhold or withdraw funds directly to the Secretary.

(iv) If the Secretary determines that any funds withheld or withdrawn from a State cannot be fully awarded to local jurisdictions within the State consistent with the purpose of the NEVI Formula Program, any such funds remaining shall be distributed among other States (except States for which funds for that fiscal year have been withheld or withdrawn) in the same manner as funds distributed for that fiscal year under subparagraph 4(b), except that the ratio shall be adjusted to exclude States for which funds for that fiscal year have been withheld or withdrawn. Such funds shall only be available to carry out the NEVI Formula Program.

d. The funds may be used to contract with a private entity for the acquisition and installation of publicly accessible electric vehicle charging infrastructure and the private entity may pay the non-Federal share of the cost of a project funded under this program.

e. The funds shall be for projects directly related to the charging of a vehicle and only for electric vehicle charging infrastructure that is open to the general public or to authorized commercial motor vehicle operators from more than one company.

f. Any electric vehicle charging infrastructure acquired or installed with the funds shall be located along a designated alternative fuel corridor.

(i) If a State determines, and the Secretary certifies, that the designated alternative fuel corridors in the States are fully built out, then the State may use the funds for electric vehicle charging infrastructure on any public road or in other publicly accessible locations, such as parking facilities at public buildings, public schools, and public parks, or in publicly accessible parking facilities owned or managed by a private entity.

g. Except as otherwise provided, the funds shall be administered as if apportioned under Chapter 1 of Title 23, U.S.C.

h. Pursuant to 23 U.S.C. 109(s)(2), notwithstanding any other provision of law, a project to install electric vehicle charging infrastructure using funds provided under the NEVI Formula Program shall be treated as if the project is located on a Federal-aid highway.

i. The Federal share payable for the cost of a project funded under the NEVI Formula Program is 80 percent.

j. The funds are not transferable under Section 126 of Title 23, U.S.C.

5. **What is the distribution of funds for the National Electric Vehicle Infrastructure Formula Program?**

a. The IIJA appropriates a total of $1,000,000,000 for FY 2026 in HIP funds to provide funding to States to strategically deploy electric vehicle charging infrastructure and to establish an interconnected network to facilitate data collection, access, and reliability.

b. The amount of FY 2026 funds available for distribution to the States is $885,000,000 after the application of an administrative takedown of $15,000,000 and a set-aside of $100,000,000 for States or localities that require additional assistance to strategically deploy electric vehicle charging infrastructure. The attached Table 1 shows the State-by-State distribution of funds.

c. Funds will not be made available to a State for obligation until that State's Electric Vehicle Infrastructure Deployment Plan has been submitted to and approved by FHWA, per the National Electric Vehicle Infrastructure Formula Program Interim Final Guidance.

6. **What action is required?** Division Administrators should ensure that copies of this Notice are provided to the State departments of transportation.

James O. Payne III

James O. Payne, III
Chief Counsel

Attachments

CERTIFICATE OF APPORTIONMENT FROM THE SUM OF $885,000,000 APPROPRIATED FOR THE HIGHWAY INFRASTRUCTURE PROGRAMS FOR THE NATIONAL ELECTRIC VEHICLE INFRASTRUCTURE FORMULA PROGRAM

TO—

The Secretary of the Treasury of the United States and the State departments of transportation:

Pursuant to the Infrastructure Investment and Jobs Act (IIJA), Title VIII of Division J, Public Law 117-58, and the delegation of authority from the Secretary of Transportation to the Federal Highway Administration (FHWA) Administrator, Section 1.85 of Title 49, Code of Federal Regulations, I certify—

First, that pursuant to the IIJA, Title VIII of Division J, Public Law 117-58, the amount appropriated for the Highway Infrastructure Program (HIP) National Electric Vehicle Infrastructure (NEVI) Formula Program, for the fiscal year ending September 30, 2026, is $1,000,000,000.

Second, that pursuant to the IIJA, Title VIII of Division J, Public Law 117-58, of the amount appropriated for the HIP NEVI Formula Program, FHWA will retain $15,000,000 for operations and administration of FHWA.

Third, that pursuant to the IIJA, Title VIII of Division J, Public Law 117-58, of the amount appropriated for the HIP NEVI Formula Program, FHWA has set aside $100,000,000 for States or localities that require additional assistance to strategically deploy electric vehicle charging infrastructure.

Fourth, that after the application of the administrative takedown and the set aside, the amount of funds available for distribution to the States, the District of Columbia, and Puerto Rico for the HIP NEVI Formula Program is $885,000,000.

Fifth, that I have computed the apportionment to each State, the District of Columbia, and Puerto Rico of the amounts appropriated for the HIP NEVI Formula Program in the manner provided by law.

Sixth, that the sums that are hereby apportioned to each State, the District of Columbia, and Puerto Rico, effective immediately, are respectively as follows:

U.S. DEPARTMENT OF TRANSPORTATION
FEDERAL HIGHWAY ADMINISTRATION

N4510.909 - TABLE 1

FY 2026 APPORTIONMENT OF HIGHWAY INFRASTRUCTURE PROGRAM FUNDS FOR THE NATIONAL ELECTRIC VEHICLE INFRASTRUCTURE FORMULA PROGRAM PURSUANT TO THE INFRASTRUCTURE INVESTMENT AND JOBS ACT, TITLE VIII OF DIVISION J, PUBLIC LAW 117-58

State	National Electric Vehicle Infrastructure Formula Program
Alabama	16,892,434
Alaska	11,164,305
Arizona	16,290,864
Arkansas	11,527,817
California	81,721,400
Colorado	12,042,164
Connecticut	11,183,159
Delaware	3,766,417
Dist. of Col.	3,552,676
Florida	42,185,666
Georgia	28,749,342
Hawaii	3,765,866
Idaho	6,368,422
Illinois	31,655,938
Indiana	21,215,732
Iowa	10,942,591
Kansas	8,414,067
Kentucky	14,793,858
Louisiana	15,627,114
Maine	4,110,084
Maryland	13,380,174
Massachusetts	13,522,865
Michigan	23,442,824
Minnesota	14,518,929
Mississippi	10,768,614
Missouri	21,078,444
Montana	9,135,437
Nebraska	6,435,671
Nevada	8,085,041
New Hampshire	3,678,796
New Jersey	22,231,202
New Mexico	8,176,510
New York	37,373,856
North Carolina	23,221,836
North Dakota	5,527,804
Ohio	29,845,177
Oklahoma	14,121,062
Oregon	11,128,961
Pennsylvania	36,532,008
Puerto Rico	2,906,890
Rhode Island	4,869,424
South Carolina	14,909,534
South Dakota	6,279,134
Tennessee	18,815,091
Texas	86,854,836
Utah	7,731,497
Vermont	4,518,895
Virginia	22,657,806
Washington	15,094,096
West Virginia	9,730,381
Wisconsin	16,753,222
Wyoming	5,704,067
Total	885,000,000
Program Code	Y137

APPROVED EFFECTIVE: October 1, 2025

James O. Payne III

CHIEF COUNSEL